

to regulate Executive Branch documents exists in this instance, a power that is augmented by the important interests that the Act seeks to attain. See *infra*, at 452-454.

## B

### *Presidential Privilege*

Having concluded that the separation-of-powers principle is not necessarily violated by the Administrator's taking custody of and screening appellant's papers, we next consider appellant's more narrowly defined claim that the Presidential privilege shields these records from archival scrutiny. We start with what was established in *United States v. Nixon*, *supra*—that the privilege is a qualified one.<sup>9</sup> Appellant had argued in that case that *in camera* inspection by the District Court of Presidential documents and materials subpoenaed by the Special Prosecutor would itself violate the privilege without regard to whether the documents were protected from public disclosure. The Court disagreed, stating that "neither the doctrine of separation of powers, nor the need for confidentiality of high-level communications, without more, can sustain an absolute, unqualified Presidential privilege . . ." <sup>10</sup>

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"limitations directly related to the character of the documents as records of government activity." 43 Op. Atty. Gen. No. 1 (1974), App. 220-230.

On the other hand, even if legal title rests in the Government, appellant is not thereby foreclosed from asserting under § 105 (a) a claim for return of private materials retained by the Administrator in contravention of appellant's rights and privileges as specified in § 104 (a) (5).

<sup>9</sup> Like the District Court, we do not distinguish between the qualified "executive" privilege recognized in *United States v. Nixon* and the "Presidential" privilege to which appellant refers, except to note that appellant does not argue that the privilege he claims extends beyond the privilege recognized in that case. See 408 F. Supp., at 343 n. 24.

<sup>10</sup> *United States v. Nixon* recognized that there is a legitimate governmental interest in the confidentiality of communications between high Government officials, *e. g.*, those who advise the President, and that "[h]uman experience teaches that those who expect public dissemination